

July 15, 2026

Via electronic mail



Re: FOIA Request 26-1735

Dear 

I am responding to your request dated and received in my office June 30, 2026, under the Illinois Freedom of Information Act (FOIA) in which you requested:

"The most recent written declaration satisfying 625 ILCS 5/2-130(c) from each of Sylacauga AL PD, Webster Groves MO PD, Cedar Lake IN PD, South Sioux City NE PD, Kentucky Stat PD, Ladue MO PD, Bremen IN PD, St. Charles MO PD.

625 ILCS 5/2-130(c) reads, "Any ALPR user in this State, including any law enforcement agency of this State that uses ALPR systems, shall not share ALPR information with an out-of-state law enforcement agency without first obtaining a written declaration from the out-of-state law enforcement agency that it expressly affirms that ALPR information obtained shall not be used in a manner that violates subsection (b)."

Information responsive to your request is available and attached. These are public records numbering 1 page. Please note that the record provided is a sample certification by a University of Illinois police officer. The records requested are the certifications required by 625 ILCS 5/2-130(c), which are built into the Flock system and must be affirmed by agencies accessing Illinois ALPR data; it cannot be bypassed. However, the certification process does not generate or retain a separate written declaration or document that can be produced in response to a public records request.

You have a right under the law to seek a review of this response by the Public Access Counselor (PAC) in the Office of the Attorney General. The PAC may be reached by phone at 877.299.3642, or by postal mail to Leah Bartelt, Public Access Counselor, Office of the Illinois Attorney General, 500 South 2nd Street, Springfield, Illinois 62701. You also have the right to seek judicial review under section 11 of this Act.

If you have questions for our office, please contact 217-333-6400.

Sincerely,

Adrienne Nazon
Vice President, External Relations and
Communications
and Chief Records Officer

State

Illinois State Policy

I affirm that my agency will comply with Illinois law 625 ILCS 5/2-130, which mandates that Illinois LPR data may not be used

- Interferes with a person's right to choose or obtain reproductive health care services or any lawful health care services under the Reproductive Health Care Privacy Act; or
- Permits the detention or investigation of a person based on the person's immigration status. See [625 ILCS 5/2-130](#) for more information.

My agency does NOT affirm the above.

- By not affirming, my agency understands that we will not be able to request access to Illinois agencies' LPR data in the future, even if we have a relationship with them that we may have through sharing relationships or via Flock's Lookup tool.

 Once a selection is made, it cannot be undone. Please carefully review before saving.

Affirmed by jbradly@illinois.edu on 12/4/2023 at 12:56:45 PM CST